

25STCV19599 25STCV19599

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C08%2F12%2F2026

Source SHA-256: 877b42825539186fdf0d63cd0f402cecd2aedecc94750f63b114e0f62b4d628d

Case Number: 25STCV19599 Hearing Date: August 12, 2026 Dept: 513

Superior

Court of California

County of

Los Angeles – Central District

Department 513

Mary Hayes

;

Plaintiff,

vs.

FCA US, LLC

, et al.,

Defendants.

Case No.:

25STCV19599

Hearing Date:

August 12, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Demurrer

to Complaint WITH MOTION TO STRIKE

MOVING PARTY: Defendants FCA US, LLC and Elk Grove
Chrysler Dodge Jeep Ram

RESPONDING

PARTY: Plaintiff Mary Hayes

(1) Demurrer

to Complaint

(2) Motion

to Strike Portions of Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Demurrer to Complaint

Defendants FCA

US, LLC and Elk Grove Chrysler Dodge Jeep Ram ("Defendants") demur to the fifth
cause of action for negligent repair and sixth cause of action for fraudulent
concealment asserted in the Complaint filed by plaintiffs Martin Lara and
Martha Alvarez ("Plaintiffs").

The court overrules

Elk Grove CDJR's demurrer to the fifth cause of action for negligent repair because
it states facts sufficient to constitute a cause of action since (1) the court finds
that it is not barred by the economic loss rule because it is based on Elk

Grove CDJR's breach of its duty to use ordinary care and skill in the storage, preparation, and repair of the subject vehicle in accordance with industry standards (Compl., ¶ 62), and therefore does not arise from any underlying contract between Plaintiff and Elk Grove CDJR, and (2) Plaintiff has sufficiently alleged that Elk Grove CDJR's breach of its duties proximately caused Plaintiff's damages (Compl., ¶ 63). (Code Civ. Proc., § 430.10, subd. (e); Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923; Berkley v. Dowds (2007) 152 Cal.App.4th 518, 527 ["Ordinarily, negligence may be alleged in general terms"].)

The court sustains

Defendants' demurrer to the sixth cause of action for fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiff has not alleged that Defendants had a duty to disclose the facts regarding the subject defects in the vehicle, including because Plaintiff has not alleged facts establishing that they purchased the vehicle directly from Defendants or its agent and that, during the course of those direct dealings, Defendants concealed facts regarding the defects from Plaintiff. (Code Civ. Proc., § 430.10, subd. (e); Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose "presuppose a preexisting relationship between the parties" which "must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large"]; Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers].)

The burden is on the

plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.)

To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiff has not articulated the facts that they could allege to render the sixth cause of action against FCA sufficient and therefore sustains the demurrer without leave to amend.

Motion to Strike

Defendants move
the court for an order striking from the Complaint Plaintiff's prayer for
punitive damages.

The court grants
Defendants' motion to strike Plaintiff's prayer for punitive damages because
Plaintiff has not alleged facts establishing that Defendant is guilty of
oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) The
court grants Defendants' motion without leave to amend because Plaintiff has
not articulated the facts that they could allege to render their claim for
punitive damages sufficient against Defendant. (Palm Springs Villas II
Homeowners Assn., Inc., supra, 248 Cal.App.4th at p.
290.)

ORDER

The court
SUSTAINS defendants FCA US, LLC and Elk Grove Chrysler Dodge Jeep Ram's
demurrer to plaintiff Mary Hayes's sixth cause of action without leave to
amend.

The court OVERRULES
defendants FCA US, LLC and Elk Grove Chrysler Dodge Jeep Ram's demurrer to plaintiff
Mary Hayes's fifth cause of action.

The court GRANTS defendants
FCA US, LLC and Elk Grove Chrysler Dodge Jeep Ram's motion to strike without
leave to amend. The court orders that plaintiff Mary Hayes's prayer for
punitive damages (set forth on page 12, section e, line 7 of the Complaint) is
stricken.

The court orders
defendants FCA US, LLC and Elk Grove Chrysler Dodge Jeep Ram to file an answer
to plaintiffs Mary Hayes's Complaint within 10 days of the date of this order.

The court orders defendants
FCA US, LLC and Elk Grove Chrysler Dodge Jeep Ram to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 12, 2026

Robert B. Broadbelt III

Judge of the Superior Court